

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY
SENATE AMENDMENTS TO S.B. 1111
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 28, chapter 3, Arizona Revised Statutes, is
3 amended by adding article 23, to read:

4 ARTICLE 23. AUTOMATED LICENSE PLATE READERS

5 28-1241. Definitions

6 IN THIS ARTICLE, UNLESS THE CONTEXT OTHERWISE REQUIRES:

7 1. "AUTOMATED LICENSE PLATE READER" MEANS A TECHNOLOGY THAT
8 PROVIDES STATIONARY OR MOBILE AUTOMATED DETECTION OF LICENSE PLATES AND
9 THAT CAPTURES DATA ASSOCIATED WITH LICENSE PLATES FOR OFFICIAL LAW
10 ENFORCEMENT PURPOSES.

11 2. "OFFICIAL LAW ENFORCEMENT PURPOSES" INCLUDES THE IDENTIFICATION
12 OF STOLEN OR WANTED VEHICLES, STOLEN LICENSE PLATES, HUMAN TRAFFICKING AND
13 MISSING PERSONS, THE GATHERING OF INFORMATION RELATED TO ACTIVE WARRANTS,
14 SUSPECT INTERDICTION AND STOLEN PROPERTY RECOVERY.

15 28-1242. Automated license plate readers; allowable uses;
16 training; authorized access

17 A. A LAW ENFORCEMENT AGENCY SHALL USE AN AUTOMATED LICENSE PLATE
18 READER ONLY FOR THE FOLLOWING PURPOSES:

19 1. LEGITIMATE AND OFFICIAL LAW ENFORCEMENT PURPOSES.

20 2. IN CONJUNCTION WITH ANY PATROL OPERATION OR CRIMINAL LAW
21 ENFORCEMENT INVESTIGATION.

22 3. CANVASSING LICENSE PLATES AROUND ANY CRIME SCENE.

23 4. CHECKING ANY PARTIAL LICENSE PLATE NUMBER REPORTED DURING A
24 MAJOR CRIME TO IDENTIFY PERSONS OF INTEREST.

25 B. IF PRACTICABLE, A LAW ENFORCEMENT OFFICER SHALL VERIFY AN
26 AUTOMATED LICENSE PLATE READER RESPONSE THROUGH AN AUTHORIZED CENTRAL LAW
27 ENFORCEMENT DATABASE THAT IS ACCESSIBLE TO LAW ENFORCEMENT OFFICERS IN
28 THIS STATE BEFORE TAKING ENFORCEMENT ACTION BASED ONLY ON AN ALERT FROM AN
29 AUTOMATED LICENSE PLATE READER.

30 C. AN EMPLOYEE OF A LAW ENFORCEMENT AGENCY MAY NOT OPERATE AN
31 AUTOMATED LICENSE PLATE READER UNTIL THE EMPLOYEE SUCCESSFULLY COMPLETES
32 LAW ENFORCEMENT AGENCY-APPROVED TRAINING FOR THE AUTOMATED LICENSE PLATE
33 READER.

34 D. AN OPERATOR OF AN AUTOMATED LICENSE PLATE READER MAY NOT ACCESS
35 DATA FROM AN AUTHORIZED CENTRAL LAW ENFORCEMENT DATABASE THAT IS
36 ACCESSIBLE TO LAW ENFORCEMENT OFFICERS IN THIS STATE OR A NATIONAL LAW
37 ENFORCEMENT DATABASE UNLESS THE OPERATOR IS AUTHORIZED TO ACCESS THE DATA.

38 E. DATA FROM AN AUTOMATED LICENSE PLATE READER MAY NOT BE ACCESSED
39 UNLESS A TRACKABLE CRIMINAL CASE NUMBER OR A TRACKABLE INCIDENT NUMBER IS
40 PROVIDED FOR THE DATA BEING ACCESSED.

1 28-1243. Automated license plate readers; data and image
2 collection; requirements; violation;
3 classification
4 A. ALL DATA AND IMAGES COLLECTED BY AN AUTOMATED LICENSE PLATE
5 READER ARE FOR OFFICIAL USE BY THE LAW ENFORCEMENT AGENCY THAT COLLECTED
6 THE DATA AND IMAGES.
7 B. ANY DATA OR IMAGES COLLECTED BY AUTOMATED LICENSE PLATE READERS
8 ARE NOT SUBJECT TO A PUBLIC RECORDS REQUEST, EXCEPT A LAW ENFORCEMENT
9 AGENCY SHALL SHARE ANY DATA OR IMAGES COLLECTED BY AN AUTOMATED LICENSE
10 PLATE READER PURSUANT TO A DULY AUTHORIZED SUBPOENA OR ANY OTHER LAW.
11 C. A LAW ENFORCEMENT AGENCY THAT OPERATES AN AUTOMATED LICENSE
12 PLATE READER IS RESPONSIBLE FOR ENSURING PROPER COLLECTION AND RETENTION
13 OF THE DATA AND IMAGES COLLECTED.
14 D. A THIRD PARTY THAT INTENTIONALLY RELEASES ANY AUTOMATED LICENSE
15 PLATE READER DATA OR IMAGES WITHOUT AUTHORIZATION FROM THE LAW ENFORCEMENT
16 AGENCY THAT COLLECTED THE DATA IS GUILTY OF A CLASS 1 MISDEMEANOR AND
17 SHALL PAY A FINE OF NOT LESS THAN \$500 PER IMAGE OR DATA RELEASED, EXCEPT
18 THAT A THIRD PARTY THAT PROVIDES AN AUTOMATED LICENSE PLATE READER TO A
19 LAW ENFORCEMENT AGENCY MAY DISCLOSE DATA OR IMAGES COLLECTED BY THE
20 AUTOMATED LICENSE PLATE READER PURSUANT TO A DULY AUTHORIZED SUBPOENA,
21 WARRANT OR COURT ORDER.
22 E. A LAW ENFORCEMENT AGENCY THAT USES AN AUTOMATED LICENSE PLATE
23 READER SHALL:
24 1. ENSURE ALL AUTOMATED LICENSE PLATE READER DATA THAT IS
25 DOWNLOADED IS ACCESSIBLE ONLY THROUGH A PASSWORD-PROTECTED SYSTEM CAPABLE
26 OF DOCUMENTING ALL ACCESS INFORMATION BY THE NAME OF THE PERSON WHO
27 ACCESSED THE DATA AND THE DATE AND TIME OF ACCESS.
28 2. ENSURE ANY PERSON WHO IS APPROVED TO ACCESS AUTOMATED LICENSE
29 PLATE READER DATA AND IMAGES PURSUANT TO THIS ARTICLE IS ALLOWED TO ACCESS
30 THE DATA AND IMAGES ONLY FOR OFFICIAL LAW ENFORCEMENT PURPOSES.
31 3. RELEASE AUTOMATED LICENSE PLATE READER DATA AND IMAGES TO OTHER
32 AUTHORIZED AND VERIFIED LAW ENFORCEMENT OFFICIALS AND AGENCIES FOR
33 OFFICIAL LAW ENFORCEMENT PURPOSES ONLY IF THE DATE AND TIME OF ACCESS TO,
34 THE REASON FOR ACCESS TO AND THE NAME OF THE AGENCY THAT ACCESSED THE
35 AUTOMATED LICENSE PLATE READER DATA AND IMAGES ARE DOCUMENTED IN THE
36 SYSTEM, UNLESS THE LAW ENFORCEMENT AGENCY'S POLICIES PROHIBIT THE RELEASE
37 OF LICENSE PLATE READER DATA AND IMAGES.
38 4. PERFORM ANNUAL SYSTEM AUDITS OF THE LAW ENFORCEMENT AGENCY'S
39 AUTOMATED LICENSE PLATE READER SYSTEM."
40 Amend title to conform

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